

Smt. Kudusia Begum v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · WRIT - C No. 14787 of 2022 · **Writ petition dismissed; no interference where the statutory appeal against the final assessment was not filed.**

HEADNOTE

Where an earlier writ seeking to quash a final assessment had already been dismissed for the alternative statutory remedy of appeal, and the consumer admitted that no appeal had been filed, the High Court declined to interfere with a later Tehsildar recovery citation for the assessed electricity dues and dismissed the writ.

FACTUAL SUMMARY

Smt. Kudusia Begum challenged a 20 April 2022 Tehsildar recovery citation from Tehsil Karchhana, Prayagraj, claiming Rs 9,85,010 plus charges as electricity dues. She sought quashing of the citation, a fresh Electricity Supply Code 2005 assessment after hearing, decision on her 24 August 2021 representation, and a stay of coercive recovery. Her earlier writ against the 16 July 2021 final assessment had been dismissed on 23 October 2021 for the statutory appeal; she admitted no appeal had been filed.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

unappealed-assessment-recovery-citation

HOLDING

Once an earlier writ against a final assessment has been dismissed for the alternative statutory remedy of appeal, and the consumer admits that no appeal was filed, a later writ seeking to quash a Tehsildar recovery citation for those dues, a fresh Supply Code assessment, and a stay of coercive recovery calls for no interference and is dismissed. ¶ 1-2

FLAG Order refers only to the 'alternative statutory remedy of filing an appeal' without numbering the section; s.127 inferred from an unappealed final assessment.

PRINCIPLE TAGS

alternative-remedy-statutory-appeal The Court treated the petitioner's admitted failure to file the statutory appeal against the 16.07.2021 final assessment — after an earlier writ had already been dismissed on that ground — as conclusive against a later challenge to the Tehsildar recovery citation. Lead authorities: *Smt. Kudusia Begum v. State of U.P.*, Writ-C No. 27451 of 2021 (23.10.2021). ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 16.07.2021 FINAL ASSESSMENT AND OF THE 20.04.2022 RECOVERY CITATION

The Court did not examine whether the assessment or the Tehsildar citation complied with the Electricity Supply Code 2005. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Kudusia Begum v. State of U.P.</i> Writ-C No. 27451 of 2021, decided on 23.10.2021			1-2	followed

